



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 34997353

Date: JAN. 21, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, a financial manager, seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition, concluding that the Petitioner did not establish that she is eligible for or otherwise merits a national interest waiver as a matter of discretion. We dismissed a subsequent appeal. The matter is now before us on combined motions to reopen and reconsider.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the motions.

In our appellate decision, we concluded that the Petitioner had not established that her proposed endeavor was of national importance as required by the first prong of the *Dhanasar* analytical framework. *Matter of Dhanasar*, 26 I&N Dec. 884 (AAO 2016). We made that determination because the Petitioner did not provide evidence that demonstrated that her proposed endeavor extends beyond her business and her future clients to impact the field, any other industries, or the U.S. economy more broadly at a level commensurate with national importance. *Id.* at 889. Because we dismissed the Petitioner's appeal based on determining that she had not shown the national importance of her proposed endeavor, we reserved our decision concerning the Petitioner's eligibility for a national interest waiver under *Dhanasar's* second and third prongs.¹

A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). Our review on motion is limited to reviewing our latest decision. 8 C.F.R. § 103.5(a)(1)(ii). We may grant motions that satisfy these requirements and demonstrate eligibility

¹ *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (stating that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision); *see also Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where the applicant did not otherwise meet their burden of proof).

for the requested benefit. *See Matter of Coelho*, 20 I&N Dec. 464, 473 (BIA 1992) (requiring that new evidence have the potential to change the outcome).

On motion, the Petitioner's legal brief lists three articles submitted with the motion, but the brief provides no analysis of how these articles provide new facts such that they have the potential to change the decision's outcome. For instance, the press release from the Small Business Administration (SBA) reveals that "small businesses are the lifeblood of the U.S. economy." However, this is a general press release, which does not address the specifics of the Petitioner's proposed endeavor. Likewise, the Forbes article provide any insight to the merits of the Petitioner's specific proposed endeavor. As such, we find that the Petitioner has not presented new facts such that we could grant her motion to reopen.

A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). Our review on motion is limited to reviewing our latest decision. 8 C.F.R. § 103.5(a)(1)(ii). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit.

On motion, the Petitioner contests the correctness of our prior decision. In support of her motion, the Petitioner relies on her interpretation of *Dhanasar* to assert that we incorrectly applied the "standard of national interest" in our dismissal of her appeal. *See Matter of Dhanasar*, 26 I&N Dec. at 884. The Petitioner argues that we "equated the lack of geographical implication and the lack of potential to employ U.S. workers as [a] failure to show national importance." Further, the Petitioner argues that our decision disregarded "national initiative" and instead considered "geography and employment" for establishing national importance. The Petitioner also states that our dismissal determined that the Petitioner has not established eligibility for the underlying EB-2 classification since she did not demonstrate the national importance of her endeavor. Finally, the Petitioner contends we erroneously applied the standard of proof in our decision.

The Petitioner's contention that we found that she did not qualify for the underlying EB-2 classification is incorrect. We stated that we agreed with the Director's determination that the Petitioner qualifies for EB-2 classification as a member of the professions holding an advanced degree in our decision. We concluded that the record demonstrates the Petitioner holds the foreign equivalent of a U.S. bachelor's degree in business administration followed by more than five years of progressive experience in her specialty.

Next, we agree with the Petitioner that *Dhanasar* controls how we determine whether a proposed endeavor is of the required national importance. Further, we agree with the Petitioner that *Dhanasar* abrogated *Matter of New York State Dep't of Transp.* ("*NYSDOT*"), 22 I&N Dec. 215 (Acting Assoc. Comm'r 1998) and that there is no requirement to show the "geographic breadth of the endeavor" to demonstrate national importance under the *Dhanasar* framework. *Matter of Dhanasar*, 26 I&N at 887.

The Petitioner asserts on motion, similar to on appeal, that we applied the superseded *NYSDOT* case on appeal instead of the *Dhanasar* analytical framework. We disagree. Our decision does not rely on *NYSDOT* for any legal principle. Rather, we relied on *Dhanasar* for our determination regarding

whether the Petitioner had demonstrated her eligibility for a national interest waiver. We examined whether the Petitioner had provided specific, probative evidence that her endeavor has the potential to have broader implications in her field, significant potential to employ U.S. workers, or other substantial positive economic effects in Florida or the United States. In doing so, we relied on *Dhanasar* for the proposition that “[a]n undertaking may have national importance for example, because it has national or even global implications within a particular field, such as those resulting from certain improved manufacturing processes or medical advances.” *Id.* at 893. We pointed out that while the Petitioner emphasized the importance of the field of her endeavor, she did not provide evidence specific to her endeavor to demonstrate that it would have a “potential prospective impact” sufficient to establish national importance. *Id.* at 889. Further, we explained that the Petitioner’s reliance on her professional experience, knowledge, and achievements is applicable to *Dhanasar*’s second prong, but is not proof of the national importance of her proposed endeavor.

The standard of proof that governs this proceeding is a preponderance of the evidence. That means that a petitioner must show that what is claimed is “more likely than not” or “probably true.” *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). In our evaluation of whether the Petitioner had established whether she met the national importance component of *Dhanasar*’s first prong, we correctly applied this standard. The Petitioner does not point out an instance where we applied a stricter standard. Rather, the Petitioner makes conclusory statements without indicating exactly how we misapplied the preponderance standard in our decision.

Regarding the Petitioner’s assertion that we disregarded “the applicable criterion (national initiative) for establishing national importance,” we do not agree. A review of *Dhanasar* shows that it does not use the concept of “national initiative” as the Petitioner suggests. *Id.* The Petitioner provides no other basis for her argument. Therefore, we find the Petitioner’s argument unpersuasive. *Cf. Giday v. INS*, 113 F.3d 230, 234 (D.C. Cir. 1997) (declining to address a “passing reference” to an argument in a brief that did not provide legal support).

Although the Petitioner has submitted additional evidence in support of the motion to reopen, she has not established eligibility. On motion to reconsider, the Petitioner has not established that our previous decision was based on an incorrect application of law or policy at the time we issued our decision. Therefore, the motion will be dismissed. 8 C.F.R. § 103.5(a)(4).

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.